

Magistrates' Courts Rules — Overview

MAGISTRATES' COURTS RULES — OVERVIEW

Actions and applications

Ordinary and provisional sentence summons; applications on notice. Monetary jurisdiction limits are set by the Minister and must be checked for the year of issue.

Default judgment and rescission

Rules provide for default judgment where appearance is not entered, and rescission on good cause.

Execution

Warrants of execution against movable and immovable property; emoluments attachment orders (subject to National Credit Act and case law limits on emoluments).

Small claims interaction

Separate Small Claims Court procedures apply for lower value disputes under the Small Claims Courts Act 61 of 1984.

NOTE: Educational overview.

— End of curated extract. Verify official text before reliance. —